

summary judgment, the court must view the evidence in the light most favorable to the opposing party. (*Aguilar, supra*, 25 Cal.4th at p. 843.)

The moving party bears the burden of persuasion that there is no triable issue of material fact and that she is entitled to adjudication as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

III. Legal Analysis

A. Quiet Title

The elements of an action to quiet title are: 1) the plaintiff is the owner and in possession of the land and 2) the defendant claims an interest therein adverse to the plaintiff. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 740.)

Here, it is undisputed that the Plaintiffs own the Roadway – or at least that part of the Roadway that is at issue.

Sara acknowledges that she does not have legal or formal ownership of any easement over or in part of the roadway. However, she asserts ownership under either a notice theory, prescriptive easement, or abutter's rights. Plaintiffs, however, argue that there are no questions of material fact remaining and that Sara cannot maintain her cause of action for quiet title.

Constructive notice of an adverse interest to property can be had in two ways. First, constructive notice arises by the proper recording of an instrument containing that property right. (*Vasquez v. LBS Financial Credit Union* (2020) 52 Cal.App.5th 97, 108.) That clearly did not happen in this case. It is also possible to have constructive notice of a potential defect to the title where the purchaser "has knowledge of circumstances which, upon reasonable inquiry, would lead to that particular fact." (*Ibid* [citations omitted].) That is, in certain circumstances, where the purchaser has knowledge of certain facts or circumstances that should warn them of the need to make further inquiries into whether there are an adverse claims to the property. (*Ibid*.)

The determination as to whether a party is a good faith purchaser is typically a question of fact. (*Ibid*.) Here, there are substantial questions of material fact remaining with regards to whether the Culpers were on notice, when they purchased the Phillips Property, that occupants of the Rader Property were using the access roadway. There is substantial evidence that the access road was open and obvious, that the Rader family had used it repeatedly and continuously for decades, that the Culpers were aware that the Raders had their name and address and lock on the access gate, and that multiple Rader family members were openly and continuously using the access road. At the same time, Plaintiffs argue that any of these "notices" of use were "neighborly accommodations" (MSJ p. 14.) Thus, there are quite clearly multiple issues of material fact with regards to the nature, obviousness, and use of the roadway by the Raders at the time the Culpers took ownership.

As is evidenced by the number of disputed factual claims in the motion and opposition, too many questions of fact on the issue remain. Accordingly, the motion for summary adjudication on FACC's claim for quiet title is denied.

B. Declaratory Relief/Injunctive Relief

Code of Civil Procedure section 1060 allows for the bringing of an action for declaratory judgment in order to ascertain the ongoing rights and duties of parties to an actual controversy. " 'One test of the right to institute proceedings for declaratory judgment is the necessity of present adjudication as a guide for plaintiff's future conduct in order to preserve his legal rights.'" (*Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 647.)

For the same reasons as stated above, there are multiple issues of material fact with regards to the underlying use of the Roadway to grant summary adjudication on the issue of ownership and use.

As regards the claims for injunctive relief, the cause of action is not an individual claim but rather a remedy based on another claim. Because the quiet title claim survives the motion or summary judgment, so does the claim for injunctive relief.

C. Slander of Title

"Slander or disparagement of title occurs when a person, without a privilege to do so, publishes a false statement that disparages title to property and causes the owner thereof " 'some special pecuniary loss or damage.'" (*Sumner Hill Homewoners' Assn., Inc. v. Rio Mesa Holdings* (2012) 205 Cal.App.4th 999, 1030.)

Plaintiffs asserts that they are entitled to summary adjudication on this claim because there was never a false statement about easement rights, because Sara does not in fact have any such rights.

Where, as here, the alleged title is based on prescriptive rights, there can be no slander of title claim *until* the determination of title has been made by the Court. (*Id.* at 1028-1029.) Because there has been no determination as to Rader's claimed rights, she cannot maintain a cause of action for slander of title.

Accordingly, summary judgment on the claim for slander of title is granted.

IV. Evidentiary Rulings

The parties objected to various statements and exhibits. However, none of the contested items were material to the disposition of the motion, and accordingly the Court does not rule on any of the evidentiary objections to evidence. (Code Civ. Proc. §437(q).)